

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201902645	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/15/2019 1:45 PM	Location of Incident: Inside the 77th Precinct Stationhouse	18 Mo. SOL 5/2/2021	Precinct: 77
Date/Time CV Reported Sat, 03/16/2019 4:29 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/27/2019 11:15 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Joseph Brunetti	00779	918633	077 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Steve Lafortune	02570	928609	077 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Joseph Brunetti	Force: Detective Joseph Brunetti used physical force against § 87(2)(b)	A . Alleged Victim Uncooperative

Case Summary

On March 16, 2019, § 87(2)(b) contacted the IAB Command Center by phone and filed this complaint on behalf of her nephew, § 87(2)(b). § 87(2)(b) did not witness the incident. She did not provide a telephone number for § 87(2)(b) but only his home address. § 87(2)(b) did not provide any contact information for herself. On March 27, 2019, this complaint was received at the CCRB.

On March 29, 2019, a BADS search for § 87(2)(b) confirmed his home address, but did not list any telephone numbers.

On March 29, 2019, a CLEAR search for § 87(2)(b) listed a telephone number and one additional address. On March 29, 2019, a call was placed at this number and a voice message was left requesting § 87(2)(b) to contact the agency.

On April 1, 2019, a LEXIS search for § 87(2)(b) confirmed his home address, listed an email address, but did not reveal any telephone numbers.

On April 1, 2019, a CLEAR search for § 87(2)(b) listed two potential addresses and two telephone addresses. On April 1, 2019, a call was placed to one of two numbers and it was not in service. On April 1, 2019, a call was placed to the second number. § 87(2)(b) provided her home address and confirmed her telephone number. She stated that § 87(2)(b) did not have his cell phone, because it was taken from him during his arrest. § 87(2)(b) promised to provide § 87(2)(b) with the CCRB information and ask him to contact the agency.

On April 1, 2019, § 87(2)(b) contacted the agency from § 87(2)(b)'s number. He confirmed his home address and email address that was obtained for him during the LEXIS search. He then provided his grandmother's telephone number as his contact number, stating that his cell phone was vouchered and he did not have a chance to get it from the stationhouse. § 87(2)(b) provided a brief telephone statement and scheduled his in-person interview for April 2, 2019, 10 a.m., at the CCRB. On April 2, 2019, § 87(2)(b) missed his scheduled interview without calling ahead of time to cancel or reschedule. On April 2, 2019, at 4:40 p.m., a voice message was received from § 87(2)(b) in which he asked the agency to contact him to reschedule his interview. On April 3, 2019, a call was placed to § 87(2)(b) at his grandmother's number. § 87(2)(b)'s grandmother replied, said that § 87(2)(b) was unavailable, and promised to ask him to contact the CCRB. On April 5, 2019, a second call was placed to § 87(2)(b) and he re-scheduled his interview for April 10, 2019, at 12 p.m., at the CCRB. § 87(2)(b) explained that he missed his first interview, because he had to be at work. On April 10, 2019, at 11 a.m., § 87(2)(b) contacted the CCRB ahead of his scheduled interview to confirm the agency's address and said that he was on his way. On April 10, 2019, § 87(2)(b) failed to appear for his second scheduled interview.

Between March 29, 2019, and April 11, 2019, two please-call letters and a missed appointment letter were mailed to § 87(2)(b) at the address he had previously confirmed. On April 1, 2019, a please call letter was mailed to § 87(2)(b) at the address obtained for him during the CLEAR search. None of the letters mailed to § 87(2)(b) were returned by the USPS as undelivered. Between April 1, 2019, and April 4, 2019, a please call letter and a missed appointment letter were also emailed to § 87(2)(b) at the email address he had confirmed. None of the emails was returned as undelivered.

On March 29, 2019, a request for BWC was submitted and is currently pending receipt. On April 1, 2019, the CCRB contacted ADA Andrew Lee to check if he had any video interviews of § 87(2)(b). ADA Lee asked to be contacted in two weeks since he had not received the case

